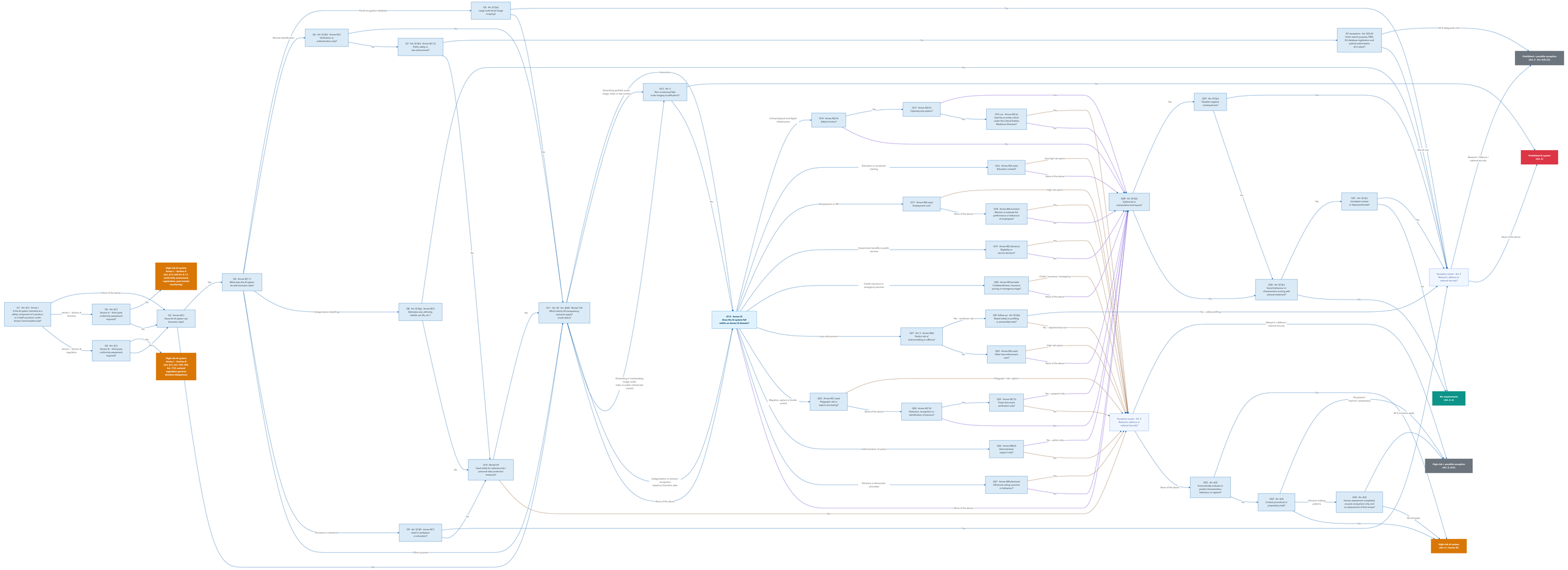

Flowchart – Risk category (Art. 2, 3, 5, 6, 50 and Annex I, III AI Act)

This schematic representation shows the logic required to determine the risk category of an AI system according to Article 2, 3, 5, 6, 50 and Annex I, III of the AI Act, covering the Annex I safety-component / product check, the Article 6(1) third-party conformity assessment, the biometric-data screen, the Recital 54 cybersecurity / personal-data-protection carve-out, the Article 50 transparency screen, the Annex III high-risk domains, the prohibited-practices screening of Article 5(1)(a) and (c), and the Article 2 exception screen with the Article 6 classification rules. The complete questions can be found in the AI AQT tool itself.

Q1 · Art. 6(1) · Annex I
Is the AI system intended as a safety component of a product, or is itself a product, under Annex I harmonisation law?

Q2 · Art. 6(1)
Section A – third-party conformity assessment required?

Q2 · Art. 6(1)
Section B – third-party conformity assessment required?

High-risk AI system Annex I – Section A (Art. 6(1); full Art. 8-17, conformity assessment, registration, post-market monitoring)

High-risk AI system Annex I – Section B (Art. 6(1), Art. 102-109, Art. 112; sectoral regulation governs detailed obligations)

Q3 · Annex III(1)
Does the AI system use biometric data?

Q4 · Annex III(1.1)
What does the AI system do with biometric data?

Q5 · Art. 5(1)(e)
Large-scale facial-image scraping?

Q6 · Art. 5(1)(h) · Annex III(1)
Verification or authentication only?

Q7 · Art. 5(1)(h) · Annex III(1.2)
Public safety or law enforcement?

Q7-exceptions · Art. 5(2)-(3)
Victim search purpose, FRIA, EU-database registration and judicial authorisation all in place?

Q8 · Art. 5(1)(g) · Annex III(1)
Estimates race, ethnicity, beliefs, sex life, etc.?

Q9 · Art. 5(1)(f) · Annex III(1)
Used in workplace or education?

Q10 · Recital 54
Used solely for cybersecurity / personal-data-protection measures?

Q11 · Art. 50 · Art. 3(60) · Recital 134
Which Article 50 transparency scenarios apply?
(multi-select)

Q12 · Art. 5
Non-consensual fake nude imagery (nudification)?

Q13 · Annex III
Does the AI system fall within an Annex III domain?

Q14 · Annex III(2.4)
Safety function?

Q15 · Annex III(2.5)
Cybersecurity system?

Q15-cer · Annex III(2.6)
Used by an entity critical under the Critical Entities Resilience Directive?

Q16 · Annex III(3.uses)
Education context?

Q17 · Annex III(4.uses)
Employment use?

Q18 · Annex III(4.monitor)
Monitor or evaluate the performance or behaviour of employees?

Q19 · Annex III(5.decision)
Eligibility or service decision?

Q20 · Annex III(5.private)
Creditworthiness, insurance pricing or emergency triage?

Q21 · Art. 5 · Annex III(6)
Predict risk of (re)committing an offence?

Q21-follow-up · Art. 5(1)(d)
Based solely on profiling or personality traits?

Q22 · Annex III(6.uses)
Other law-enforcement uses?

Q23 · Annex III(7.uses)
Polygraph, risk or asylum processing?

Q24 · Annex III(7.4)
Detection, recognition or identification of persons?

Q25 · Annex III(7.5)
Travel-document verification only?

Q26 · Annex III(8.2)
Administrative support only?

Q27 · Annex III(8.elections)
Influences voting outcome or behaviour?

Q28 · Art. 5(1)(a)
Subliminal or manipulative techniques?

Q29 · Art. 5(1)(a)
Possible negative consequences?

Q30 · Art. 5(1)(c)
Social-behaviour or characteristics scoring with adverse treatment?

Q31 · Art. 5(1)(c)
Unrelated context or disproportionate?

Exception screen · Art. 2
Research, defence or national security?

Exception screen · Art. 2
Research, defence or national security?

Q32 · Art. 6(3)
Automatically evaluate or predict characteristics, behaviour or aspects?

Q33 · Art. 6(3)
Limited procedural or preparatory task?

Q34 · Art. 6(3)
Human assessment completed, ex-post comparison only, and no replacement of that review?

Prohibited + possible exception (Art. 2 · Art. 5(2)-(3))

Prohibited AI system (Art. 5)

No requirements (Art. 5, 6)

High-risk + possible exception (Art. 2, 6(3))

High-risk AI system (Art. 6 + Annex III)

Annex I – Section A directive
Annex I – Section B regulation
None of the below
Yes
No
Facial-recognition database
Remote identification
Categorisation (labelling)
Emotions or intentions
Other purpose
Interaction
Generating synthetic audio, image, video or text content
Generating or manipulating image, audio, video or public-interest text content
Categorization or emotion recognition based on biometric data
None of the above
Critical physical and digital infrastructure
Education or vocational training
Employment or HR
Government benefits or public services
Credit, insurance or emergency services
Law enforcement
Migration, asylum or border control
Administration of justice
Elections or democratic processes
Any high-risk option
High-risk option
Credit / insurance / emergency
Yes – recidivism risk
No – objective facts too
Polygraph / risk / asylum
Yes – passport only
Yes – admin only
Yes – solely profiling
Research / defence / national security
All 4 safeguards met
Not all met
Procedural / improve / preparatory
Decision-making patterns
All 3 scenarios apply
Not all apply